

Authentication (Procedure) of Some Public Documents Act, 2006

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Some Public Documents Authentication (Procedure) Act, 2063

Authentication and Publication Date

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Amending Acts

1. Some Public Documents Authentication (Procedure) (First Amendment) Act, 2065 2065.9.2
2. Some Nepal Acts Amendment Act, 2072 2072.11.13
3. Some Nepal Acts Amendment Act, 2075 2075.11.19
4. Legislation Act, 2081 2081.2.03

Act No. 4 of the year 2063

An Act Made to Provide for the Amendment and Consolidation of the Authentication Procedure of Some Public Documents

Preamble: Whereas it is desirable to amend and consolidate the prevailing laws relating to the authentication procedure of some public documents in a timely manner,

This Act is enacted by the House of Representatives in the first year after the issuance of the declaration of the House of Representatives, 2063. 1. Short Title and Commencement: (1) This Act may be called the ?Some Public Documents Authentication (Procedure) Act, 2063?.

(2) This Act shall commence immediately. 2. Definitions: Unless the subject or context otherwise requires, in this Act, -

(a) ?Public document? means the following documents: -

- (1) Acts,
- (2) Ordinances,
- (3) Rules made by the Government of Nepal,
- (4) Rules made by a constitutional body,
- (5) Orders issued by the Government of Nepal,

Added by the Some Nepal Acts Amendment Act, 2075.(5a) Rules made, orders or licenses issued by the Provincial Government, or decisions of the Provincial Government, Council of Ministers,

Added by the Some Nepal Acts Amendment Act, 2075.(5b) Acts, rules made, and orders issued by the local level,

Amended by the Some Nepal Acts Amendment Act, 2075.(6) Resolutions passed by the Constituent Assembly, the Legislature-Parliament or the Federal Parliament,

Added by the Some Nepal Acts Amendment Act, 2075.(6a) Resolutions passed by the Provincial Assembly,

Municipal Assembly or Village Assembly,

(7) Licenses issued by the Government of Nepal,

(8) Decisions of the Government of Nepal, Council of Ministers,

(9) Appointment letters for positions appointed in accordance with the Constitution,

(10) Appointment, transfer and retirement letters given by the Government of Nepal in accordance with prevailing law,

(11) Other documents required to be authenticated in accordance with prevailing law,

Added by the Some Nepal Acts Amendment Act, 2075.(11a) Appointment, transfer or retirement letters given by the Provincial Government in accordance with prevailing law,

(12) Other documents as prescribed.

(b) ?Authentic copy? means the original copy signed by the officer authorized to authenticate a public document.

(c) ?Secretary? means a Secretary of the Government of Nepal, and that term also includes any other officer of the special class of the Nepal Gazette of the Government of Nepal.

(d) ?Prescribed? or ?as prescribed? means prescribed or as prescribed in the rules made under this Act. Amended by the First Amendment.3.

Authentication Procedure of Acts: (1) Amended by the Some Nepal Acts Amendment Act, 2075.After a bill is passed by the Federal Parliament, Amended by the Some Nepal Acts Amendment Act, 2075.the Federal Parliament Secretariat shall prepare Amended by the Legislation Act, 2081.five copies of such a bill on Nepali paper and submit them to the President for authentication. Amended by the Some Nepal Acts Amendment Act, 2075.(2) The copies of the bill to be submitted pursuant to sub-section (1) must be signed by the Speaker or Chairperson of the House where the bill originated, mentioning the date on which the bill was passed by the Federal Parliament. (3) After the President signs, mentioning the date, on the copies of the bill submitted pursuant to sub-section (1), such a bill shall be authenticated and shall become an Act. (4) Among the authentic copies made pursuant to sub-section (3), one copy shall be kept in the Office of the President, Amended by the Legislation Act, 2081.one copy each shall be sent to the Office of the Prime Minister and Council of Ministers and the Federal Parliament Secretariat, and two copies shall be sent to the Ministry of Law, Justice and Parliamentary Affairs, and each such office shall safely keep the authentic copy so received. (5) On the basis of the authentic copy received pursuant to sub-section (4), the Secretary of the Ministry of Law, Justice and Parliamentary Affairs shall publish the Act in the Nepal Gazette, indicating the date of authentication of the Act. Amended by the Some Nepal Acts Amendment Act, 2075.4. Authentication of Resolutions Passed by the Federal Parliament: (1) The authentication of a resolution passed by the Federal Parliament in accordance with the Constitution of Nepal and other prevailing law shall be effected by the signature of the Speaker or Chairperson of the House where such resolution originated. (2) On the basis of the authentic copy made pursuant to sub-section (1), the Secretary-General or Secretary of the Federal Parliament, or a gazetted officer designated by the Secretary-General, shall implement or cause to implement such resolution. Amended by the First Amendment.5.

Authentication Procedure of Ordinances: (1) Amended by the Some Nepal Acts Amendment Act, 2072.After the Council of Ministers recommends the issuance of an ordinance pursuant to Article 114, Sub-Article (1) of the Constitution of Nepal, the Ministry of Law, Justice and Parliamentary Affairs shall prepare Amended by the Legislation Act, 2081.four copies of the draft of such ordinance on Nepali paper. (2) The following

office-bearers must sign the draft of the ordinance prepared pursuant to sub-section (1): - (a) The Prime Minister, (b) The concerned line Minister, (c) The Minister for Law, Justice and Parliamentary Affairs, (d) The Chief Secretary of the Government of Nepal, and (e) The Secretary of the Ministry of Law, Justice and Parliamentary Affairs. (3) The Ministry of Law, Justice and Parliamentary Affairs shall send the draft of the ordinance signed pursuant to sub-section (2) to the Office of the Prime Minister and Council of Ministers, and the Office of the Prime Minister and Council of Ministers shall submit such draft to the President for authentication. (4) After the President signs, mentioning the date, on the copies of the draft ordinance received pursuant to sub-section (3), the ordinance shall be authenticated. (5) After authentication pursuant to sub-section (4), such ordinance shall have force as an Act. (6) After the ordinance is authenticated pursuant to sub-section (4), among such authentic copies, one copy shall be kept in the Office of the President, Amended by the Legislation Act, 2081. one copy shall be sent to the Office of the Prime Minister and Council of Ministers, and two copies shall be sent to the Ministry of Law, Justice and Parliamentary Affairs, and each such office shall safely keep the authentic copy so received. (7) On the basis of the authentic copy received pursuant to sub-section (6), the Secretary of the Ministry of Law, Justice and Parliamentary Affairs shall publish the ordinance in the Nepal Gazette, indicating the date of authentication of the ordinance. Added by the First Amendment. 5A.

Authentication of Orders, Licenses, Notices Issued by the President: (1) Amended by the Some Nepal Acts Amendment Act, 2072. The authentication of an order, license, notice or any other document issued by the President in accordance with the Constitution of Nepal and other prevailing law shall be effected by the signature of the President. (2) After authentication pursuant to sub-section (1), the Office of the President shall keep one copy safely in its office and shall write to the Office of the Prime Minister and Council of Ministers for information and implementation of such order, license, notice or other document which has been authenticated, and to the Ministry of Law, Justice and Parliamentary Affairs for the publication of matters required to be published in the Nepal Gazette. 6. Authentication of Rules, Orders, Licenses, etc.: (1) After the Government of Nepal, Council of Ministers decides on the issuance of the following public documents, the Chief Secretary shall sign two copies of such document for authentication on the basis thereof, keep one copy in the Office of the Prime Minister and Council of Ministers, and send the other copy to the concerned Ministry: - (a) Rules made by the Government of Nepal, (b) Orders issued by the Government of Nepal, (c) Licenses issued by the Government of Nepal, (d) Decisions required to be made, directives or other public documents required to be issued by the Government of Nepal, Council of Ministers in accordance with prevailing law. (2) The concerned Ministry shall safely keep the authentic copy received pursuant to sub-section (1) and shall implement it on the basis thereof. 7. Authentication of Other Public Documents of the Government of Nepal: The authentication of other public documents of the Government of Nepal, other than those mentioned in Sections Amended by the First Amendment. 3, 4, 5, 5A and 6, shall be effected by the concerned Secretary or by any other gazetted officer designated by him/her. 8.

Authentication of Appointments Made Pursuant to the Constitution and Other Prevailing Law: (1) Amended by the Some Nepal Acts Amendment Act, 2072. The appointment letter for a position appointed by the President in accordance with the Constitution of Nepal and other prevailing law shall be authenticated by the signature of the President. (2) The Office of the President shall keep the authentic copy of the appointment letter made pursuant to sub-section (1) safely and shall write to the Office of the Prime Minister and Council of Ministers for information and implementation of such authentication, and to the Ministry of Law, Justice and Parliamentary Affairs for the publication of matters required to be published in the Nepal Gazette. (3) Other than those mentioned in sub-section (1), Amended by the Some Nepal Acts Amendment Act, 2072. the appointment of other positions appointed in accordance with the Constitution of Nepal shall be authenticated

by the prescribed officer in the prescribed manner and shall be implemented as prescribed. 9. Authentication of Orders: Other than those mentioned in Section 6, other orders of the Government of Nepal shall be authenticated by the prescribed officer in the prescribed manner. 10. Authentication of Rules, Regulations or Directives Made by Constitutional Bodies: (1) Two copies of the rules, regulations or directives made by a constitutional body in accordance with prevailing law shall be authenticated by the signature of the chief office-bearer of such body. (2) Among the authentic copies made pursuant to sub-section (1), one copy shall be kept safely in the concerned constitutional body and the other copy in the concerned Ministry. 11. Authentication of Other Public Documents: The authentication of other public documents as prescribed, other than those mentioned in Sections Amended by the First Amendment.³, 4, 5, 5A, 6, 7, 8, 9 and 10, shall be effected by the prescribed officer in the prescribed manner. Added by the Some Nepal Acts Amendment Act, 2075. Provided that, in the case of public documents of provinces and local levels, it shall be done in accordance with the provisions of the relevant provincial or local level law. 12. Matters to be Authenticated Under Other Prevailing Law Not Affected: If there is a separate provision in prevailing law regarding the authentication of any public document, nothing contained in this Act shall affect such matter. 13. National Archives of Public Documents to be Maintained: (1) A public document authenticated under this Act shall, after completion of the prescribed period, be kept in the National Archives by completing the prescribed procedure. (2) When keeping in the National Archives pursuant to sub-section (1), microfilms of public documents as prescribed shall be prepared and kept. 14.

Penalty: (1) Amended by the Some Nepal Acts Amendment Act, 2075. If any person forges a public document, effects authentication or certification of something that does not exist, or tampers with it, The name of the Muluki Criminal (Code) Act, 2074 is Nepal Muluki Criminal Code, 2074. the punishment shall be as provided in Sub-section (3) of Section 276 of the Muluki Criminal (Code) Act, 2074. (2) Deleted by the Some Nepal Acts Amendment Act, 2075 (3) A person who attempts to commit, abets, or is an accomplice in an offence under sub-section (1) or (2) shall be liable to half the punishment provided for the principal offender. (4) If any person suffers any kind of loss or damage due to an offence under this section, compensation for that shall also be recovered from the offender. 15. Government Case: The case under this Act Transformed by the Some Nepal Laws Amendment, Consolidation, Adjustment and Repeal Act, 2074 and amended by the Some Nepal Acts Amendment Relating to Civil Code Act, 2075. shall be deemed to be included in Schedule-1 of the Muluki Criminal Procedure Code, 2074. 16. Power to Make Rules: The Government of Nepal may make necessary rules for the purpose of implementing this Act. 17. Repeal and Saving: (1) The following laws are hereby repealed: - (a) The Seal Act, 2015, (b) The Rules Relating to Procedure for Confirming Punishment under Seal, 2018, (c) The Rules for Certifying Orders of His Majesty's Government, 2023, (d) The Rules for Certifying Orders of His Majesty, 2048, (e) The Seal (Procedure) Rules, 2054. (2) Anything done or action taken under the laws repealed pursuant to sub-section (1) shall not be deemed to be adversely affected by this Act. (3) Bills already authenticated by the Speaker of the House of Representatives in accordance with the House of Representatives Rules, 2063 at the time of commencement of this Act shall be deemed to have been authenticated under this Act.